

shall and may be exercised either by the Lord Chancellor intrusted as aforesaid acting alone or jointly with one or more of such judges of the Supreme Court as may for the time being be intrusted as aforesaid or (save as to the powers conferred by sections one hundred and eight, one hundred and twelve and one hundred and fifteen of the said Act) by any one or more of such judges as aforesaid.

5. The committees for any two or more district lunatic asylums may, with the consent of the councils of the counties affected, agree to unite in providing and maintaining a laboratory for pathological research in connection with insanity and nervous diseases, and may defray the expenses incurred in pursuance of an agreement under this section by contributions from the funds at their disposal for the maintenance of their respective asylums.

Powers to unite for purposes of pathological research.

6. In this Act the expression "criminal lunatic" means

Definition.

(a) any person for whose safe custody during His Majesty's or the Lord Lieutenant's pleasure His Majesty or the Lord Lieutenant or the Admiralty is authorised to give order; and

(b) any person whom the Lord Lieutenant or a Secretary of State or the Admiralty has, in pursuance of any Act, directed to be removed to an asylum or other place for the reception of insane persons:

Provided that a person shall cease to be a criminal lunatic if he is remitted to prison or absolutely discharged, or if any term of penal servitude or imprisonment to which he may be subject determines.

7. This Act may be cited as the Lunacy (Ireland) Act, 1901, and may be cited with the Lunacy (Ireland) Acts, 1821 to 1890.

Extent and short title.

CHAPTER 18.

An Act to amend the Law with reference to International Arrangements for Patents. [17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1.) In the first proviso to subsection one of section one hundred and three of the Patents, Designs, and Trade Marks Act, 1883 (which section relates to the time for making applications for protection under international arrangements), the words "twelve months" shall be substituted for the words "seven months."

International arrangements. 46 & 47 Vict. c. 57.

(2.) An application under that section shall be accompanied by a complete specification, which, if it be not accepted within the

period of twelve months, shall, with the drawings (if any), be open to public inspection at the expiration of that period.

Short title,
construction
and com-
mencement.

2.—(1.) This Act may be cited as the Patents Act, 1901, and may be cited and shall be construed as one with the Patents, Designs, and Trade Marks Acts, 1883 to 1888.

(2.) This Act shall come into operation on the first day of January one thousand nine hundred and two.

CHAPTER 19.

An Act to amend the Acts relating to Public Libraries, Museums and Gymnasiums, and to regulate the Liability of Managers of Libraries to Proceedings for Libel. [17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Amendment of Public Libraries Acts, 1892 and 1893.

Short title and
construction.
55 & 56 Vict.
c. 53.
56 & 57 Vict.
c. 11.

1. This Act may be cited as the Public Libraries Act, 1901, and shall be construed as one with the Public Libraries Act, 1892 (herein-after referred to as the principal Act), and the Public Libraries (Amendment) Act, 1893, and those Acts and this Act may be together cited as the Public Libraries Acts, 1892 to 1901.

Qualification
of library
commissioners.

2.—(1.) Any commissioners appointed for a library district under the principal Act may be either voters in the district or persons who, though not voters, would, if the district were a rural parish having a parish council, be qualified for election as parish councillors.

56 & 57 Vict.
c. 73.

(2.) Section forty-six of the Local Government Act, 1894, relating to disqualifications for election to, or membership of, certain authorities, shall have effect as if a library authority, being a body of commissioners appointed under the principal Act, were one of the authorities mentioned in that section.

Power to
library
authority to
make byelaws.

3.—(1.) A library authority may make byelaws for all or any of the following purposes relating to any library, museum, art gallery or school which by virtue of the principal Act or this Act is under their control, that is to say:

(a) for regulating the use of the same and of the contents thereof, and for protecting the same and the fittings, furniture and contents thereof from injury, destruction or misuse;

(b) for requiring from any person using the same any guarantee or security against the loss of, or injury to, any book or other article;

(c) for enabling the officers and servants of the library authority to exclude or remove therefrom persons committing any offence against the Libraries Offences Act, 1898, or against the byelaws.

61 & 62 Vict.
c. 53.

(2.) All byelaws under this section shall be made subject and according to the provisions respecting byelaws contained in sections one hundred and eighty-two to one hundred and eighty-six of the Public Health Act, 1875, and those sections shall apply as if the expression "local authority" therein included in every case a library authority. 38 & 39 Vict. c. 55.

(3.) All offences and penalties under any such byelaw may be prosecuted and recovered in manner provided by the Summary Jurisdiction Acts.

4. The Libraries Offences Act, 1898, shall apply to any museum, art gallery or school provided under the Public Libraries Act, 1892. Extension of art gallery or school provided under the Public Libraries Act, 1892. 61 & 62 Vict. c. 53.

5.—(1.) The library authorities of two or more library districts may agree to share, in such proportions and for such period as may be determined by the agreement, the cost of the purchase, erection, repair and maintenance of any library building in one of those districts, and also the cost of the purchase of books and newspapers for such library, and all other expenses connected with the same, and may also agree as to the management and use of the library, and as to the interchange, hire and use of books and newspapers belonging to such authorities respectively. Power to library authorities to make agreements for use of library.

(2.) This section shall apply, with the necessary modifications, to a museum, school for science, art gallery or school for art in like manner as to a library.

6. In a library district, being a parish, the sanction of the parish meeting or vestry shall not be required annually for raising the sums from time to time due from the parish for defraying the expenses incurred by the library authority, and those sums shall be paid by the overseers on the order of the library authority. But in any parish in a rural district the sanction of the parish meeting shall be required in the year one thousand nine hundred and eleven, and in every tenth year thereafter: Provided that nothing in this section shall affect the operation of section eleven of the Local Government Act, 1894. Amendment of 55 & 56 Vict. c. 53. s. 18, as to expenses in parishes. 56 & 57 Vict. c. 73.

7. An urban authority for whose district the Museums and Gymnasiums Act, 1891, has been adopted, either wholly or so far as it relates to museums only, may appropriate for the purposes of that Act a museum provided for the district under the principal Act, and thereupon the Museums and Gymnasiums Act, 1891, shall apply to the museum as if it were provided under that Act. Application of 54 & 55 Vict. c. 22, to museum provided under principal Act.

8. On the adoption of the principal Act for any library district, the library authority shall forthwith give notice in writing of such adoption to the Local Government Board. The library authority of every district in which the Act has already been adopted shall give the like notice within three months after the passing of this Act. Notice to Local Government Board.

9. In any library district every person who is a parochial elector within the meaning of the Local Government Act, 1894, shall be a voter for the purposes of the principal Act and this Definition of "voter." 56 & 57 Vict. c. 73.

Act; and parochial electors shall, for all the purposes of the principal Act, be substituted for county electors.

Expenses of repairing damage from subsidence not to be reckoned in limitation of rate.

10. Where in any borough or urban district a building provided under the principal Act shall be damaged through the subsidence of the ground, any expenses incurred by the town council or urban district council in the repair of the damage thereto shall not be reckoned for the purposes of any limitation of rate under section two of the said principal Act.

Extent of Act.

Act not to apply to Scotland.

11. This Act shall not apply to Scotland.

Application of Act to Ireland.

Application of certain provisions to Ireland.

12. The provisions of this Act enabling a library authority to make byelaws for purposes other than those relating to the Libraries Offences Act, 1898, and otherwise relating to such byelaws, shall extend to Ireland with the substitution of the Public Libraries (Ireland) Acts, 1855 to 1894, for the principal Act, and of sections two hundred and nineteen to two hundred and twenty-three of the Public Health (Ireland) Act, 1878, for sections one hundred and eighty-two to one hundred and eighty-six of the Public Health Act, 1875, and of the expression "sanitary authority" for "local authority."

41 & 42 Vict. c. 52.

Application of the Museums and Gymnasiums Act, 1891, and Public Libraries (Amendment) Act, 1893, to London.

Application to London of 54 & 55 Vict. c. 22, and 56 & 57 Vict. c. 11.

13. The Museums and Gymnasiums Act, 1891, and the Public Libraries (Amendment) Act, 1893, shall extend to the administrative county of London, and for the purpose of such extension shall be modified as follows:—

The expression "urban authority" shall include the common council of the city of London and a metropolitan borough council, and the expression "district" or "urban district" shall include the city of London and a metropolitan borough;

Any expenses incurred by the common council of the city of London or by a metropolitan borough council under the Museums and Gymnasiums Act, 1891, so far as they are not defrayed by fees and other money received under the said Act, shall be defrayed in the manner in which expenses incurred by that council under the principal Act are payable.

Repeal.

Repeal.

14. The Acts mentioned in the schedule to this Act are hereby repealed to the extent specified in the third column of that schedule.

SCHEDULE.

Section 14.

Session.	Short Title.	Extent of Repeal.
54 & 55 Vict. c. 22.	The Museums and Gymnasiums Act, 1891.	In section two, the words "or "the administrative county of "London."
55 & 56 Vict. c. 53.	The Public Libraries Act, 1892.	Section three, in so far as it is inconsistent with this Act. Sub-section one of section sixteen. Sub-section two of section eighteen, and in sub-section three of the same section the words "but "the sanction of the vestry "shall not be required for "raising the sums from time "to time due from the parish "for meeting those expenses." So much of section twenty-seven as relates to the definition of a "voter." The First Schedule.

CHAPTER 20.

An Act to amend the Law relating to Youthful Offenders
and for other purposes connected therewith.

[17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and
with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows :

1. Where a child or young person, having been convicted of felony, is discharged in accordance with section sixteen of the Summary Jurisdiction Act, 1879, or the Probation of First Offenders Act, 1887, or otherwise, or is punished with whipping only, the conviction shall not be regarded as a conviction of felony for the purposes of section fifteen of the Industrial Schools Act, 1866, or of any disqualification attaching to felony.

Removal of
disqualifica-
tions attach-
ing to felony.
42 & 43 Vict.
c. 49.
50 & 51 Vict.
c. 25.
29 & 30 Vict.
c. 118.

2.—(1) Where a child or young person is charged with any offence for the commission of which a fine, damages or costs may be imposed upon him by a court of summary jurisdiction, and there is reason to believe that his parent or guardian has conduced to the commission of the alleged offence by wilful default or by habitually neglecting to exercise due care of him, the court may, on information, issue a summons against the parent or guardian of the child or young person charging him with so contributing to the commission of the offence.

Liability of
parent or
guardian in
case of offence
committed by
child or young
person.

(2.) A summons to the child or young person may include a summons to the parent or guardian.